LANDMARK SC: KESAVANANDA BHARATI v. STATE OF KERALA (1973) 4 SCC 225

BENCH: 13-Judge Constitutional Bench (Largest in Indian History) | RATIO: 7:6 | CORE PRINCIPLE: BASIC STRUCTURE DOCTRINE

FACTS & HOLDING: Challenged the 24th, 25th, and 29th Constitutional Amendments. The Supreme Court held that while Parliament has wide constituent power under Article 368 to amend any part of the Constitution, including Fundamental Rights, this power is NOT absolute and cannot be exercised to alter, emasculate or destroy the 'Basic Structure' or foundational framework of the Constitution.

PILLARS OF BASIC STRUCTURE: Supremacy of the Constitution, Republican and Democratic form of Government, Secular character, Separation of Powers between Legislature, Executive and Judiciary, Federal character, Rule of Law, and Judicial Review.

IMPACT ON LEGAL PRACTICE: Any constitutional amendment violating the basic structure is unconstitutional and liable to be struck down.

LANDMARK SC: MANEKA GANDHI v. UNION OF INDIA (1978) 1 SCC 248

BENCH: 7-Judge Bench | CORE PRINCIPLE: EXPANSIVE ARTICLE 21 DUE PROCESS & GOLDEN TRIANGLE

FACTS & HOLDING: Petitioner’s passport was impounded under Section 10(3)(c) of Passports Act 1967 ’in the interests of general public’ without giving any prior hearing or reasons. The Supreme Court overruled A.K. Gopalan and held that ’procedure established by law’ under Article 21 cannot be arbitrary, oppressive, or fanciful; it MUST be ’just, fair, and reasonable’ embodying Natural Justice.

GOLDEN TRIANGLE: Articles 14 (Equality), 19 (Freedoms), and 21 (Life and Liberty) are not isolated silos; they form a symbiotic triad. A law depriving personal liberty under Article 21 must also satisfy the non-arbitrariness test of Article 14 and reasonableness of Article 19.

IMPACT: Laid the foundation for Public Interest Litigation (PIL), right to speedy trial, legal aid, and human rights jurisprudence.

LANDMARK SC: JUSTICE K.S. PUTTASWAMY (RETD.) v. UNION OF INDIA (2017) 10 SCC 1

BENCH: 9-Judge Bench (Unanimous) | CORE PRINCIPLE: FUNDAMENTAL RIGHT TO PRIVACY UNDER ARTICLE 21

FACTS & HOLDING: Challenged the constitutional validity of Aadhaar biometric scheme. The 9-judge bench unanimously overruled M.P. Sharma (1954) and Kharak Singh (1962), holding that the Right to Privacy is a protected fundamental right under Article 21 and Part III.

THREE-FOLD TEST OF PROPORTIONALITY: State interference with privacy is valid ONLY IF it satisfies: (1) Legality: Existence of an enacted law; (2) Legitimate State Aim: Nature and purpose of the action; (3) Proportionality: A rational nexus between means adopted and object sought, with least restrictive measure adopted.

FACETS OF PRIVACY: Informational privacy, bodily autonomy, decisional privacy, and spatial privacy. Bedrock for data protection laws.

LANDMARK SC: SATENDER KUMAR ANTIL v. CBI (2022) 10 SCC 51

BENCH: 2-Judge Bench (Kaul & Sundresh, JJ.) | CORE PRINCIPLE: COMPREHENSIVE BAIL JURISPRUDENCE & SECTION 483 BNSS / 439 CrPC
HOLDING & DIRECTIVES: Reaffirmed that 'Bail is the rule, jail is the exception'. Addressed overcrowding in jails caused by unnecessary undertrial detentions. Categorized offences into 4 groups for bail consideration:
- Category A (Offences punishable with <= 7 years imprisonment): No mechanical arrest; mandatory compliance with Section 41/41A CrPC (Section 35 BNSS). Bail applications to be decided without taking accused into custody if compliant with summons.
- Category B (Offences punishable with death, life imprisonment, or > 7 years): Bail applications to be decided on merits.
- Category C (Special Acts: NDPS, PMLA, UAPA, POCSO): Bail subject to stringent conditions in special statutes.
- Category D (Economic Offences): Merits-based evaluation without treating all economic offences alike.
DIRECTIVES: Mandated timelines for disposing regular bail (2 weeks) and anticipatory bail (6 weeks).

LANDMARK SC: ARNESH KUMAR v. STATE OF BIHAR (2014) 8 SCC 273

BENCH: 2-Judge Bench (Chandramauli Kr. Prasad & P.C. Ghose, JJ.) | CORE PRINCIPLE: CURBING ARBITRARY ARRESTS (SEC 41A CrPC / SEC 35 BNSS)
FACTS & HOLDING: Noticed alarming misuse of Section 498A IPC (dowry harassment). The Supreme Court held that police officers shall NOT automatically or mechanically arrest an accused when an offence is punishable with imprisonment for a term which may be less than seven years, or which may extend to seven years.
MANDATORY GUIDELINES: (1) Police officers must be provided with a checklist containing specified sub-clauses under Section 41(1)(b)(ii); (2) Police must forward checklist with reasons when producing accused before Magistrate; (3) Magistrate must not authorize detention mechanically without recording satisfaction; (4) Notice of Appearance under Section 41A (BNSS Section 35(3)) must be served within 2 weeks;
PENAL CONSEQUENCE: Non-compliance attracts departmental action against police officers and contempt proceedings.

LANDMARK SC: LALITA KUMARI v. GOVT. OF U.P. (2014) 2 SCC 1

BENCH: 5-Judge Constitution Bench | CORE PRINCIPLE: MANDATORY REGISTRATION OF FIRST INFORMATION REPORT (FIR)
HOLDING: Registration of FIR is MANDATORY under Section 154 of the Code of Criminal Procedure (Section 173 of Bharatiya Nagarik Suraksha Sanhita 2023) if the information discloses commission of a COGNIZABLE OFFENCE, and no preliminary inquiry is permissible in such situation.
EXCEPTIONS WHERE PRELIMINARY INQUIRY IS PERMISSIBLE: (a) Matrimonial disputes / family disputes; (b) Commercial offences; (c) Medical negligence cases; (d) Corruption cases; (e) Cases where there is abnormal delay/laches in initiating criminal proceeding.
TIMELINE: Preliminary inquiry must be completed expeditiously, not exceeding 7 days, recording reasons in General Diary (GD).

LANDMARK SC: D.K. BASU v. STATE OF WEST BENGAL (1997) 1 SCC 416

BENCH: 2-Judge Bench | CORE PRINCIPLE: SAFEGUARDS AGAINST CUSTODIAL TORTURE & ARREST GUIDELINES

HOLDING: Custodial violence, torture, and custodial deaths violate fundamental right to life under Article 21. Formulated 11 binding guidelines:

(1) Police personnel carrying out arrest must bear accurate, visible identification and name tags with designations;

(2) Arrest memo must be prepared at time of arrest with time, date, and signed by at least one witness (family member/respectable person);

(3) Person arrested has right to have one friend or relative informed of arrest and place of custody within 8 to 12 hours;

(4) Person arrested must be examined at time of arrest for major/minor injuries and recorded in 'Inspection Memo';

(5) Mandatory medical examination by trained doctor every 48 hours in custody;

(6) Right to meet and consult advocate during interrogation.

LANDMARK SC: SHREYA SINGHAL v. UNION OF INDIA (2015) 5 SCC 1

BENCH: 2-Judge Bench (Chelameswar & Nariman, JJ.) | CORE PRINCIPLE: FREEDOM OF SPEECH ON THE INTERNET & SECTION 66A IT ACT

HOLDING: Struck down Section 66A of the Information Technology Act 2000 in its entirety as unconstitutional and violative of Article 19(1)(a).

RATIO: Section 66A criminalized sending 'offensive' messages through computers without clear statutory definition, resulting in chilling effect on free speech. The provision was unconstitutionally vague, overbroad, and failed the test of 'clear and present danger'.

INTERMEDIARY LIABILITY (SECTION 79): Held that intermediaries are required to take down content under Section 79(3)(b) ONLY upon receipt of an actual court order or government notification, protecting digital platforms from subjective takedown demands.

LANDMARK SC: NAVTEJ SINGH JOHAR v. UNION OF INDIA (2018) 10 SCC 1

BENCH: 5-Judge Constitution Bench | CORE PRINCIPLE: DECRIMINALIZATION OF SECTION 377 IPC & CONSTITUTIONAL MORALITY
HOLDING: Read down Section 377 of the Indian Penal Code insofar as it criminalized consensual sexual acts between consenting adults in private.
CONSTITUTIONAL DOCTRINE: Constitutional morality must triumph over majoritarian or public morality. Sexual orientation is an innate, inseparable facet of human identity protected under Article 14 (Equality), Article 15 (Non-discrimination on grounds of sex), Article 19(1)(a) (Freedom of expression), and Article 21 (Dignity, Autonomy, and Right to Privacy).

LANDMARK SC: JOSEPH SHINE v. UNION OF INDIA (2019) 3 SCC 39

BENCH: 5-Judge Constitution Bench | CORE PRINCIPLE: STRUCK DOWN SECTION 497 IPC (ADULTERY)
HOLDING: Unanimously struck down Section 497 of the Indian Penal Code (adultery) and Section 198(2) CrPC as unconstitutional.
RATIO: Section 497 treated married women as chattel of the husband, depriving them of sexual autonomy and dignity in violation of Articles 14 and 21. Criminal law should not intrude into the private realm of marriage for consensual acts. Adultery remains a valid ground for civil divorce, but ceases to be a criminal penal offence.

LANDMARK SC: VISHAKA v. STATE OF RAJASTHAN (1997) 6 SCC 241

BENCH: 3-Judge Bench (Verma, CJI, Sujata Manohar & Kirpal, JJ.) | CORE PRINCIPLE: PREVENTION OF SEXUAL HARASSMENT AT WORKPLACE
HOLDING: In the absence of domestic legislation, the Supreme Court invoked Articles 14, 19, and 21 and the CEDAW International Convention under Article 51 to lay down binding 'Vishaka Guidelines' for workplace sexual harassment prevention.
MANDATE: Mandatory establishment of Internal Complaints Committee (ICC), complaints procedure, disciplinary action, and third-party representation.
Formed the bedrock for the subsequent statutory enactment of POSH Act 2013 (Sexual Harassment of Women at Workplace Act).

LANDMARK SC: INDRA SAWHNEY v. UNION OF INDIA (1992) Supp (3) SCC 217

BENCH: 9-Judge Constitution Bench | CORE PRINCIPLE: 50% CEILING ON RESERVATION & CREAMY LAYER DOCTRINE

HOLDING: Upheld 27% reservation for Other Backward Classes (OBCs) in central government services under Article 16(4) based on Mandal Commission.

KEY PRINCIPLES: (1) Total reservation shall not exceed 50% except in extraordinary situations; (2) 'Creamy Layer' (socially and economically advanced individuals among backward classes) must be excluded from reservation benefits; (3) Backward classes cannot be identified solely on economic criteria; (4) Article 16(4) is not an exception but an emphatic facet of equality under Article 16(1).

LANDMARK SC: S.R. BOMMAI v. UNION OF INDIA (1994) 3 SCC 1

BENCH: 9-Judge Constitution Bench | CORE PRINCIPLE: JUDICIAL REVIEW OF ARTICLE 356 (PRESIDENT'S RULE) & SECULARISM
HOLDING: Presidential Proclamation under Article 356 dismissing a state government and dissolving assembly is subject to JUDICIAL REVIEW.
GUIDELINES: (1) Secularism is part of the Basic Structure; any state government acting against secularism is liable to action under Article 356; (2) Dissolution of State Legislative Assembly cannot occur until both Houses of Parliament approve the proclamation; (3) Court has power to restore the dismissed state government and revive the assembly if proclamation is held unconstitutional; (4) The floor of the Legislative Assembly is the only forum to test majority support, not Governor's subjective opinion.

LANDMARK SC: SHAYARA BANO v. UNION OF INDIA (2017) 9 SCC 1

BENCH: 5-Judge Constitution Bench | CORE PRINCIPLE: TRIPLE TALAQ (TALAQ-E-BIDDAT) STRUCK DOWN UNDER ARTICLE 14
HOLDING: Declared the practice of Talaq-e-Biddat (instant, irrevocable triple talaq) void, illegal, and unconstitutional by 3:2 majority.
MANIFEST ARBITRARINESS DOCTRINE: Held that a law or practice that is capricious, irrational, or without determining principle violates the guarantee of equality under Article 14. Instant triple talaq leaves a Muslim woman with no recourse or reconciliation, violating her dignity.

LANDMARK SC: COMMON CAUSE v. UNION OF INDIA (2018) 5 SCC 1

BENCH: 5-Judge Constitution Bench | CORE PRINCIPLE: RIGHT TO DIE WITH DIGNITY & PASSIVE EUTHANASIA
HOLDING: Right to life under Article 21 includes the right to die with dignity. The Supreme Court legalized PASSIVE EUTHANASIA (withdrawal of life-support systems for terminally ill patients in permanent vegetative state) and upheld the legal validity of ADVANCE MEDICAL DIRECTIVES (Living Wills).
PROCEDURAL SAFEGUARDS: Mandated two Medical Boards (Hospital Medical Board and Collector’s Independent Medical Board) and Judicial Magistrate scrutiny.

LANDMARK SC: ASSOCIATION FOR DEMOCRATIC REFORMS (ADR) v. UNION OF INDIA (20

BENCH: 5-Judge Constitution Bench (Unanimous, Chandrachud, CJI) | CORE PRINCIPLE: ELECTORAL BONDS SCHEME STRUCK DOWN UNDER ARTICLE 19(1)(a)
HOLDING: Struck down the Electoral Bond Scheme (2018) and related amendments to the Finance Act 2017, Representation of People Act, and Income Tax Act as unconstitutional.
RATIO: Voters have a fundamental right to information regarding the financial contributions made to political parties under Article 19(1)(a). Anonymous political contributions foster quid pro quo and corrupt corporate financing, failing the proportionality standard.